

24STCV27014 24STCV27014

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-07-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C515%2C07%2F15%2F2026

Source SHA-256: 90aa29f1c2d391ea2628f512425798fd9c922207396c882ec6660bed450b9063

Case Number: 24STCV27014 Hearing Date: July 15, 2026 Dept: 515

NATURE OF PROCEEDINGS:

Hearing on Demurrers - with Motions to Strike (CCP 430.10)

The Demurrers of Defendants Shirish Patel, M.D., and Keith Jackson, M.D., to the second and third causes of action are sustained with twenty days leave to amend. Their Motions to Strike the prayer for punitive damages are granted without leave to amend.

BACKGROUND

Plaintiff Maria Aguilera (Plaintiff) filed this action against Daniel Capen, M.D. (Capen), Michael D. Drobot (Drobot), James L. Canedo (Canedo), Temple Community Hospital, and HealthSmart Pacific, Inc., doing business as Pacific Hospital of Long Beach (Pacific Hospital), and Does 1-20. Plaintiff later substituted the following named defendants in place of the Doe defendants: Shirish Patel, M.D. (Patel) as Doe 1, Andrew Jarminski, M.D., as Doe 2, Keith Jackson, M.D. (Jackson) as Doe 3, Daniel Capen, M.D., a Professional Corporation, as Doe 4, and Downey Orthopedic Medical Group as Doe 5. Capen has answered. Drobot, Canedo, Temple Community Hospital, Pacific Hospital, and Downey Orthopedic Medical Group have been dismissed.

Plaintiff alleges that in June 2013 she was Capen's patient, receiving care for a spinal injury through the workers' compensation system. (FAC ¶ 10.) Capen recommended that he remove the spinal fusion hardware in her spine at Temple Community Hospital, advised that replacement hardware would later be installed at Pacific Hospital, and performed the removal surgery. (FAC ¶¶ 11-13.) Plaintiff contracted a MRSA infection that prevented the replacement hardware from being installed and left her permanently disabled. (FAC ¶ 14.)

She further alleges that the surgery was unnecessary and was recommended and performed so that Capen could collect kickbacks under an arrangement with Drobot and Canedo through which physicians were paid to steer spinal surgeries to Pacific Hospital. (FAC ¶ 15.) Plaintiff alleges that the defendants concealed those financial arrangements from her, and that any consent she gave to surgery is therefore invalid. (FAC ¶ 84.)

The operative First Amended Complaint (FAC) alleges three causes of action: (1) Medical Negligence; (2) Medical Battery; and (3) Fraud/Intentional Concealment.

Patel and Jackson each filed a Demurrer to the second and third causes of action and a Motion to Strike the prayer for punitive damages. Plaintiff filed an Opposition to each. Because they make substantially the same arguments, the Court considers them together.

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of three exhibits to the declaration of PAUL GREEN: a Medical Board of California licensing record reflecting that Capen surrendered his physician's license (Exhibit A); Capen's plea agreement in *United States v. Capen* (C.D.Cal., No. SACR 18-00124-JLS) (Exhibit B); and the judgment in that criminal case (Exhibit C). Plaintiff's Opposition to the Motion to Strike incorporates the same material by reference.

The Court takes judicial notice of the existence of the three documents, of the fact of Capen's conviction, and of the fact that his license was surrendered. (Evid. Code, § 452, subds. (c), (d).) The Court does not take judicial notice of the truth of the factual assertions recited within them. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1565.)

LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (*Wilson v. Transit Authority of City of Sacramento* (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the

pleading alone, and not the evidence or the facts alleged.' [Citation.]" (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th

1308, 1315.) As such, courts assume the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) However, they do not accept as true deductions, contentions, or conclusions of law or fact. (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538.)

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) [s]trike any irrelevant, false, or improper matter inserted in any pleading...." (Code Civ. Proc., § 436.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437, subd. (a).)

ANALYSIS

I. Effect of the Pending

Motion for Leave to Amend

Plaintiff's sole answer to the Motions to Strike, and her first answer to the Demurrers, is that they are moot because she has filed a Renewed Motion for Leave to File a Second Amended Complaint. The Court disagrees. A party may amend a pleading once without leave of court, but that right is confined to the original complaint. (Code Civ. Proc., § 472, subd. (a); Hedwall v. PCMV, LLC (2018) 22 Cal.App.5th 564, 572-579.) Plaintiff spent that right when she filed the FAC.

Until the Court grants leave and Plaintiff files a second amended complaint, the FAC is the operative pleading, and Patel and Jackson are entitled to a ruling on its sufficiency. Plaintiff cites no authority for the proposition that a pending request for leave to amend suspends a defendant's right to challenge the operative pleading. Accordingly, the Court reaches the merits.

II. Meet and Confer

Plaintiff next argues that the Demurrers should be overruled because Patel and Jackson did not meet and confer in good faith before filing. A determination that the meet-and-confer process was insufficient is not

grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

III. Second Cause of Action for Medical Battery

Patel and Jackson each argue that the FAC alleges no procedure, contact, or other conduct by them. Jackson further argues that consent obtained without full disclosure gives rise to a claim sounding in negligence rather than battery.

“The elements of civil battery are (1) defendant intentionally performed an act that resulted in a harmful or offensive contact with the plaintiff’s person; (2) plaintiff did not consent to the contact; and (3) the harmful or offensive contact caused injury, damage, loss or harm to plaintiff.” (Brown v. Ransweiler (2009) 171 Cal.App.4th 516, 526-527.)

Battery and lack of informed consent are separate causes of action. A claim resting on the lack of informed consent sounds in negligence and arises when a physician performs a procedure without first adequately disclosing its risks and alternatives. (Cobbs v. Grant (1972) 8 Cal.3d 229, 241.) In contrast, a battery occurs when a physician performs a procedure without obtaining consent. (Saxena v. Goffney (2008) 159 Cal.App.4th 316, 324.) Consent obtained by fraud may be no consent at all: “[i]f a physician, for the sole secret purpose of generating a fee, intentionally misrepresented to a patient that an unneeded operation was necessary, it is beyond question that the consent so obtained would be legally ineffective.” (Rains v. Superior Court (1984) 150 Cal.App.3d 933, 941.)

Here, the FAC alleges that Plaintiff was Capen’s patient (FAC ¶ 10) and that Capen performed an unnecessary surgery on her that he recommended to collect undisclosed kickbacks. (FAC ¶¶ 13, 15, 54.) Those allegations plead that Capen performed a procedure on Plaintiff and that her consent to it was ineffective, and they state a battery against Capen. They do not reach Patel or Jackson. The only procedure the FAC describes is the removal of Plaintiff’s spinal fusion hardware, which it attributes to Capen (FAC ¶¶ 11-13, 32-35), and the planned second surgery was never performed (FAC ¶ 14). The battery count frames the duty it pleads as a duty to obtain Plaintiff’s informed consent “to the surgical procedures performed by DANIEL CAPEN, MD.” (FAC ¶ 53.) Paragraph 58 then alleges collectively that

“Defendants” failed to obtain informed consent and “performed procedures, including unnecessarily removing hardware” from Plaintiff’s body. (FAC ¶ 58.) Read in context, paragraph 58 identifies no procedure beyond the removal that the FAC attributes to Capen and alleges no touching by Patel or Jackson. The FAC’s allegations against Patel, and Jackson are, at most, a failure to disclose Capen’s financial interest or to obtain consent to a surgery Capen performed, which sounds in negligence, not battery. Moreover, the FAC specifically alleges that the kickback arrangement and the unnecessary character of the surgeries were known only to Capen, Drobot, and Canedo. (FAC ¶¶ 64). Accordingly, the Court sustains the Demurrers to the second cause of action with leave to amend.

IV. Third Cause of Action for Fraud and Intentional Concealment

Patel and Jackson each argue that the FAC does not plead fraud with the particularity the law requires and does not allege any concealment, fraudulent intent, or reliance as to them.

The elements of a fraud claim based on concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as she did had she known of it; and (5) the plaintiff sustained damage as a result. (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.) A duty to disclose arises from a fiduciary or confidential relationship or from a transaction between the parties. Fraud must be pleaded specifically, and general and conclusory allegations do not suffice. The particularity requirement calls for facts showing how, when, where, to whom, and by what means the representations were tendered. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) Where the claim rests on an omission, that requirement is relaxed, but the relaxation does not excuse pleading each element of the claim.

The FAC alleges that Capen and Does 1 through 20, as Plaintiff’s medical practitioners and surgeons, owed her a duty to disclose all material facts pertaining to her surgery, including any personal and financial interests that might affect their professional judgment. (FAC ¶¶ 38, 41-42.) Accepted as true, this pleads a physician-patient relationship as to Patel and Jackson and a duty to disclose arising from it. The FAC also alleges collectively that the defendants, including the fictitiously named defendants,

failed to inform Plaintiff that Capen was receiving kickbacks and failed to disclose information relevant to her decision to undergo surgery. (FAC ¶ 52 [first cause of action]; FAC ¶¶ 79, 84-85.) However, the FAC specifically alleges that only Capen, Drobot, and Canedo knew about the scheme, and the intent to deceive is pleaded as theirs alone. (FAC ¶¶ 64, 73, 80-81.) Those specific allegations govern over the more general allegations of nondisclosure. Because the FAC pleads no knowing concealment by Patel or Jackson, it does not state a claim for concealment against them.

Accordingly, Patel and Jackson's demurrers to the third cause of action are sustained with leave to amend.

V. Motion to Strike the Prayer for Punitive Damages

Patel and Jackson each move to strike the prayer for punitive damages in the FAC on the ground that Plaintiff never obtained the order section 425.13 requires.

Code of Civil Procedure section 425.13, subdivision (a) provides, "In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed. The court may allow the filing of an amended pleading claiming punitive damages on a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code. The court shall not grant a motion allowing the filing of an amended pleading that includes a claim for punitive damages if the motion for such an order is not filed within two years after the complaint or initial pleading is filed or not less than nine months before the date the matter is first set for Trial, whichever is earlier."

Plaintiff argues that the willful and criminal character of the conduct alleged carries this case beyond professional negligence. That argument is unavailing. In *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181 (*Central Pathology*), a patient sued her physician and a laboratory over their handling and communication of

the results of medical tests. The Supreme Court held section 425.13(a) governed the fraud claim because the injury arose from the manner in which the defendants performed and communicated the results of medical tests, an ordinary and usual part of medical professional services. (Central Pathology, supra, 3 Cal.4th at pp. 192-193.) The Court added that a battery claim against a health care provider predicated on treatment exceeding or differing from that consented to falls within the statute for the same reason. (Id. at p. 192.)

Davis v. Superior

Court (1994) 27 Cal.App.4th 623 (Davis) addressed similar facts. A workers' compensation claimant there alleged that three treating physicians conspired with the compensation carrier to defraud injured workers of their benefits, and that one of them misrepresented his qualifications, lied about the patient's condition, and falsified his findings in order to keep the carrier's referrals coming. (Id. at p. 626.) The plaintiff argued that a premeditated confidence game run for profit at the expense of a class of injured workers was no ordinary part of medical professional services. The Court of Appeal rejected the distinction. What matters is not the physician's motive but whether he was engaged in the practice of medicine and whether the misrepresentation related to the acts he performed as a health care provider. Because the injury was directly related to the professional services the physician rendered, section 425.13(a) applied. (Id. at pp. 628-629.)

Here, as in Davis, Plaintiff alleges that physicians treating her under the workers' compensation system recommended and performed surgery to collect kickbacks. The injuries she claims, an unnecessary operation, an MRSA infection, and a consent given without the facts, arose from the manner in which professional services were rendered to her. Section 425.13 therefore applies, and Plaintiff has not complied with it. The prayer for punitive damages against Patel and Jackson is improperly included in the FAC as a matter of law.

An amendment alone cannot cure this defect because Code of Civil Procedure section 425.13(a) prescribes a noticed motion supported by affidavits, not a repleading. (Code Civ. Proc., § 425.13, subd. (a).) Accordingly, the Motions to Strike are granted without leave to amend. This denial is without prejudice to Plaintiff's renewed Motion for Leave to amend, set to be heard on August 28, 2026.

CONCLUSION

The Demurrers of Defendants Shirish Patel, M.D., and Keith Jackson, M.D., to the second and third causes of action are sustained with twenty days leave to amend. Their Motions to Strike are granted without leave to amend, and the prayer for punitive damages is stricken as to Patel and Jackson.